Amendment of section 153.

48. In section 153 of the Income-tax Act,—

(*a*) in sub-section (1), for the second proviso, the following proviso shall be substituted and shall be deemed to have been substituted with effect from the 1st day of April, 2021, namely:—

"**Provided further** that in respect of an order of assessment relating to the assessment year commencing on—

(*i*) the 1st day of April, 2019, the provisions of this sub-section shall have effect, as if for the words "twenty-one months", the words "twelve months" had been substituted;

(*ii*) the 1st day of April, 2020, the provisions of this sub-section shall have effect, as if for the words "twenty-one months", the words "eighteen months" had been substituted:";

(*b*) after sub-section (1), the following sub-section shall be inserted, namely:—

"(1A) Notwithstanding anything contained in sub-section (1), where a return under sub-section (8A) of section 139 is furnished, an order of assessment under section 143 or section 144 may be made at any time before the expiry of nine months from the end of the financial year in which such return was furnished.";

(*c*) in sub-section (3),—

(*i*) after the words "fresh assessment", the words, figures and letters "or fresh order under section 92CA, as the case may be," shall be inserted;

(*ii*) after the words "cancelling an assessment,", the words, figures and letters "or an order under section 92CA, as the case may be" shall be inserted;

(*d*) in sub-section (5),—

(*i*) after the words "Assessing Officer" wherever they occur, the words "or the Transfer Pricing Officer, as the case may be," shall be inserted;

(*ii*) after the words "fresh assessment or reassessment", the words, figures and letters "or fresh order under section 92CA, as the case may be," shall be inserted;

(*e*) after sub-section (5), the following sub-section shall be inserted, namely:—

"(5A) Where the Transfer Pricing Officer gives effect to an order or direction under section 263 by an order under section 92CA and forwards such order to the Assessing Officer, the Assessing Officer shall proceed to modify the order of assessment or reassessment or recomputation, in conformity with such order of the Transfer Pricing Officer, within two months from the end of the month in which such order of the Transfer Pricing Officer is received by him.";

(*f*) in sub-section (6), for the words, brackets and figures "sub-sections (3) and (5)", the words, brackets, figures and letter "sub-sections (3), (5) and (5A)" shall be substituted;

(*g*) in *Explanation 1*,—

(I) in clause (*iii*), for the words, brackets, figures and letters "or sub-clause (*iv*) or sub-clause (*v*) or sub-clause (*vi*) or sub-clause (via) of clause (23C) of section 10, under clause (*i*) of the proviso", the words, brackets and figure ",under clause (*i*) of the first proviso" shall be substituted;

(II) in clause (*xi*), for the words "Assessing Officer,", the following shall be substituted and shall be deemed to have been substituted with effect from the 1st day of April, 2021, namely:—

"Assessing Officer; or

(*xii*) the period (not exceeding one hundred and eighty days) commencing from the date on which a search is initiated under section 132 or a requisition is made under section 132A and ending on the date on which the books of account or other documents, or any money, bullion, jewellery or other valuable article or thing seized under section 132 or requisitioned under section 132A, as the case may be, are handed over to the Assessing Officer having jurisdiction over the assessee,—

(*a*) in whose case such search is initiated under section 132 or such requisition is made under section 132A; or

(*b*) to whom any money, bullion, jewellery or other valuable article or thing seized or requisitioned belongs to; or

(*c*) to whom any books of account or documents seized or requisitioned pertains or pertains to, or any information contained therein, relates to; or";

(III) after clause (*xii*), before the long line, the following clause shall be inserted, namely:—

"(*xiii*) the period commencing from the date on which the Assessing Officer makes a reference to the Principal Commissioner or Commissioner under the second proviso to sub-section (3) of section 143 and ending with the date on which the copy of the order under clause (*ii*) or clause (*iii*) of the fifteenth proviso to clause (23C) of section 10 or clause (*ii*) or clause (*iii*) of sub-section (4) of section 12AB, as the case may be, is received by the Assessing Officer,".